

25CHCV04216 25CHCV04216

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Case Number: 25CHCV04216 Hearing Date: September 28, 2026 Dept: F47

Dept. F47

Date: 9/28/26

Case #25CHCV04216

MOTION FOR
INJUNCTION/PRELIMINARY INJUNCTION

Motion for Injunction filed on 3/23/26. Motion for Injunction filed on 9/9/26. Amended Motion for Preliminary Injunction filed on 9/14/26.

MOVING PARTY: Plaintiff Michael Collins

RESPONDING PARTY: Defendant MU Holding Enterprises Inc.

RELIEF REQUESTED IN ORIGINAL MOTION FILED ON 3/23/26
& MOTION FILED ON 9/9/26:

An injunction ordering Defendant MU Holding Enterprises,
Inc. to:

1. Open
and assume the LADWP utility account for 15023 Devonshire Street;

2. Remove
the \$8,045 LADWP debt unlawfully transferred into the name of an elderly
tenant;

3. Restore

and maintain essential utilities(water and electricity) in the owner's name;

4. Replace

the nonfunctional water heater;

5. Complete

roof repairs and eliminate water intrusion;

6. Repair

foundation drainage failures;

7. Remediate

mold and water-damaged areas;

8. Replace

the pool filter;

9. Repair

plumbing issues;

10. Replace

repair bathtub;

11. Comply

with the injunctive relief pled in the First Amended Complaint (FAC).

RELIEF REQUESTED IN AMENDED MOTION FILED ON 9/14/26:

A preliminary injunction pursuant to Code of Civil

Procedure §§526 and 527, Civil Code §§789.3 and 1942.5, Business and

Professions Code §§17200 and 17203, and Los Angeles Municipal Code §§165.03,

165.05, 165.06, and 165.07.

Specifically, Plaintiff seeks the following orders:

- Enjoin MU Holding from prosecuting, enforcing, or obtaining possession through MU Holding Enterprises, Inc. v. Michael Collins et al., Case No. 26CHCV01621. Alternatively, enjoin MU Holding from effectuating Plaintiff's displacement through that proceeding until statutory termination

requirements are established.

- Enjoin MU Holding from relying upon or enforcing the March 30, 2026 Three-Day Notice against Plaintiff unless it establishes lawful service and compliance with California law and LAMC §165.05.
- Enjoin MU Holding from treating Plaintiff's tenancy as terminated or Plaintiff as unauthorized without compliance with LAMC §§165.03 and 165.05 and proof of any asserted at-fault violation.
- Require compliance with LAMC §165.05, including the requirement that an at-fault notice state specific facts sufficient to determine the date, place, witnesses, and circumstances of the asserted violation.
- Require MU Holding, as current owner and successor landlord, to establish and maintain electrical and water service under an owner-controlled account or other reliable owner controlled arrangement.
- Enjoin intentional interruption, termination, withholding, or causing termination of essential utility service for the purpose of forcing or inducing Plaintiff to vacate.
- If MU Holding relies upon a termination ground triggering LAMC §165.06, require compliance with all applicable relocation-assistance requirements before requiring Plaintiff to surrender possession.
- Enjoin retaliation, harassment, threats, coercion, or other interference because Plaintiff exercised rights protected by California or Los Angeles landlord-tenant law.
- Grant further equitable relief necessary to preserve Plaintiff's rights and prevent threatened harm.

RULING: The motion is placed off calendar.

SUMMARY OF FACTS & PROCEDURAL HISTORY

On 11/26/25, Plaintiff Michael Collins (Plaintiff) filed

this action against Defendant MU Holding Enterprises Inc. (Defendant) alleging various causes of action relating to Plaintiff's purported tenancy at residential real property located at 15023 Devonshire St., Mission Hills, CA 91345. On 12/9/25, Plaintiff filed a First Amended Complaint against Defendant.

On 1/20/26, default was entered against Defendant. (See 1/20/26 Request for Entry of Default and 1/27/26 Minute Order). On

7/21/26, the Court granted Defendant's motion to set aside default. (See 7/21/26 Minute Order). On 8/5/26, Defendant answered the complaint.

On 3/23/26, Plaintiff filed a Motion for Injunction which was purportedly served by mail on Defendant's former counsel on 4/1/26. (See Proof of Service by Mail Re: Motion for Preliminary Injunction filed 9/21/26). However, the address where the motion papers were mailed (700 N. Central Ave., Suite 305, Glendale, CA 91203) does not match the address of record for Defendant's former counsel (3100 W. Burbank Blvd., Burbank, CA 91505). On 5/1/26, the Court continued the hearing on the motion from 7/27/26 to 9/28/26. (See Notice of Continuance and Order filed 5/1/26).

On 9/9/26, Plaintiff re-filed the Motion for Injunction listing the current 9/28/26 hearing date. No proof of service for this filing appears in the court file.

On 9/14/26, Plaintiff filed an "Amended Notice of Motion and Motion for Preliminary Injunction" which also lists the 9/28/26 hearing date. The amended motion was purportedly electronically served on Defendant's current counsel on 9/21/26. (See Proof of Electronic Service Re: Amended Motion for Preliminary Injunction filed 9/21/26).

Oddly, before the amended motion was purportedly served, on 9/18/26, Defendant filed and served an opposition to the amended motion.

ANALYSIS

There is no evidence that the original motion filed on 3/23/26 and/or the motion filed on 9/9/26, which seek the same relief, were properly served on Defendant's former or current counsel. As noted above, the proof of the purported service by mail on 4/1/26 sets forth an incorrect address for Defendant's counsel at the time. (See Proof

of Service Re: Motion for Preliminary Injunction filed 9/21/26). Therefore, Defendant had no obligation to respond to that motion.

The motion filed on 3/23/26 and the motion filed on 9/9/26 seek an injunction ordering Defendant MU Holding Enterprises, Inc. to:

1. Open

and assume the LADWP utility account for 15023 Devonshire Street;

2. Remove

the \$8,045 LADWP debt unlawfully transferred into the name of an elderly tenant;

3. Restore

and maintain essential utilities(water and electricity) in the owner's name;

4. Replace

the nonfunctional water heater;

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roof repairs and eliminate water intrusion;

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8. Replace

the pool filter;

9. Repair

plumbing issues;

10. Replace

repair bathtub;

11. Comply

with the injunctive relief pled in the First Amended Complaint (FAC).

The foregoing is different from the relief sought in the amended motion. The amended motion for a preliminary injunction filed on 9/14/26 and purportedly served on 9/21/26 seeks a preliminary injunction pursuant to Code of Civil Procedure §§526 and 527, Civil Code §§789.3 and 1942.5, Business and Professions Code §§17200 and 17203, and Los Angeles Municipal Code §§165.03, 165.05, 165.06, and 165.07. Specifically, Plaintiff seeks the following orders:

- Enjoin MU Holding from prosecuting, enforcing, or obtaining possession through MU Holding Enterprises, Inc. v. Michael Collins et al., Case No. 26CHCV01621. Alternatively, enjoin MU Holding from effectuating Plaintiff's displacement through that proceeding until statutory termination requirements are established.

- Enjoin MU Holding from relying upon or enforcing the March 30, 2026 Three-Day Notice against Plaintiff unless it establishes lawful service and compliance with California law and LAMC §165.05.

- Enjoin MU Holding from treating Plaintiff's tenancy as terminated or Plaintiff as unauthorized without compliance with LAMC §§165.03 and 165.05 and proof of any asserted at-fault violation.

- Require compliance with LAMC §165.05, including the requirement that an at-fault notice state specific facts sufficient to determine the date, place, witnesses, and circumstances of the asserted violation.

- Require MU Holding, as current owner and successor landlord, to establish and maintain electrical and water service under an owner-controlled account or other reliable owner controlled arrangement.

- Enjoin intentional interruption, termination, withholding, or causing termination of essential utility service for the purpose of forcing or inducing Plaintiff to vacate.

- If MU Holding relies upon a termination ground triggering LAMC §165.06, require compliance with all applicable relocation-assistance requirements before requiring Plaintiff to surrender possession.

- Enjoin retaliation, harassment, threats, coercion, or other interference because Plaintiff exercised rights protected by California or Los Angeles landlord-tenant law.
- Grant further equitable relief necessary to preserve Plaintiff's rights and prevent threatened harm.

As noted in the opposition, the amended motion is not timely for the 9/28/26 hearing date.

Unless specially set by the court, a motion must be filed and served at least 16 court days before the hearing date.

See CCP 1005(b). It is not clear when the amended motion was served on Defendant's counsel because Defendant filed and served an opposition before the proof of service for the motion claims it was served. Even if the amended motion was served on the day it was seemingly prepared, 9/12/26, it could not have been timely served because 9/12/26, a Saturday, was only 10 court days before the hearing. The motion was filed the following Monday, 9/14/26, which is also only 10 court days before the 9/28/26 hearing date.

CONCLUSION

The motion is placed off calendar.